

Thursday, July 27, 2023

Daily Digest

HIGHLIGHTS

Senate passed S. 2226, National Defense Authorization Act, as amended.

Senate

Chamber Action

Routine Proceedings, pages S3713–S3846

Measures Introduced: One hundred sixty-one bills and fourteen resolutions were introduced, as follows: S. 2555–2715, S.J. Res. 39–42, S. Res. 319–327, and S. Con. Res. 19. **Pages S3752–58**

Measures Reported:

Special Report entitled “Joint Economic Committee on the 2023 Economic Report of the President”. (S. Rept. No. 118–86)

S. 2587, making appropriations for the Department of Defense for the fiscal year ending September 30, 2024. (S. Rept. No. 118–81)

S. 1868, to require an interagency study to produce a security assessment process on adjacent space to high-security leased space to accommodate a Federal agency, with an amendment in the nature of a substitute. (S. Rept. No. 118–82)

S. 2605, making appropriations for the Department of the Interior, environment, and related agencies for the fiscal year ending September 30, 2024. (S. Rept. No. 118–83)

S. 2624, making appropriations for the Departments of Labor, Health and Human Services, and Education, and related agencies for the fiscal year ending September 30, 2024. (S. Rept. No. 118–84)

S. 2625, making appropriations for the Department of Homeland Security for the fiscal year ending September 30, 2024. (S. Rept. No. 118–85)

S. 133, to extend the National Alzheimer’s Project, with an amendment.

S. 134, to require an annual budget estimate for the initiatives of the National Institutes of Health pursuant to reports and recommendations made under the National Alzheimer’s Project Act.

S. 1855, to reauthorize the Special Diabetes Program for Type 1 Diabetes and the Special Diabetes Program for Indians. **Page S3752**

Measures Passed:

Commemorating Tony Bennett: Senate agreed to S. Res. 322, commemorating the life, legacy, and entertainment career of Tony Bennett. **Page S3275**

National Defense Authorization Act: Senate passed H.R. 2670, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense and for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, after striking all after the enacting clause and inserting in lieu thereof the text of S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, as amended. Subsequently, Senate indefinitely postponed S. 2226. **Pages S3730–31**

Organ Procurement and Transplantation Network: Senate passed H.R. 2544, to improve the Organ Procurement and Transplantation Network. **Pages S3731–33**

Fentanyl Prevention and Awareness Day: Senate agreed to S. Res. 323, supporting the goals and ideals of Fentanyl Prevention and Awareness Day on August 21, 2023. **Page S3839**

National Farmers Market Week: Senate agreed to S. Res. 324, designating the week of August 6 through August 12, 2023, as “National Farmers Market Week”. **Page S3839**

National Anti-Counterfeiting and Consumer Education and Awareness Month: Senate agreed to S. Res. 325, recognizing the importance of trademarks in the economy and the role of trademarks in protecting consumer safety, by designating the month of August as “National Anti-Counterfeiting and Consumer Education and Awareness Month”. **Page S3839**

National Poll Worker Recruitment Day: Senate agreed to S. Res. 326, recognizing August 23, 2023, as “National Poll Worker Recruitment Day”.

Page S3839

Disaster Assistance Simplification Act: Senate passed S. 1528, to streamline the sharing of information among Federal disaster assistance agencies, to expedite the delivery of life-saving assistance to disaster survivors, to speed the recovery of communities from disasters, to protect the security and privacy of information provided by disaster survivors, after agreeing to the committee amendments, and the following amendment proposed thereto: **Pages S3839–43**

Schumer (for Peters) Amendment No. 1088, of a perfecting nature. **Pages S3841–43**

Disaster Assistance Deadlines Alignment Act: Senate passed S. 1858, to amend the Robert T. Stafford Disaster Relief and Emergency Assistance Act to establish a deadline for applying for disaster unemployment assistance, after agreeing to the following amendment proposed thereto: **Page S3843**

Schumer (for Peters) Amendment No. 1091, to add an applicability provision. **Page S3843**

Duck Stamp Modernization Act: Committee on Environment and Public Works was discharged from further consideration of S. 788, to amend the Permanent Electronic Duck Stamp Act of 2013 to allow States to issue fully electronic stamps under that Act, and the bill was then passed, after agreeing to the following amendment proposed thereto:

Pages S3843–44

Schumer (for Boozman) Amendment No. 1089, in the nature of a substitute. **Page S3844**

I–27 Numbering Act: Committee on Environment and Public Works was discharged from further consideration of S. 992, to amend the Intermodal Surface Transportation Efficiency Act of 1991 to designate the Texas and New Mexico portions of the future Interstate-designated segments of the Port-to-Plains Corridor as Interstate Route 27, and the bill was then passed, after agreeing to the following amendment proposed thereto: **Page S3844**

Schumer (for Cruz) Amendment No. 1090, in the nature of a substitute. **Page S3844**

Starr-Camargo Bridge: Committee on Environment and Public Works was discharged from further consideration of S. 1608, to provide for the expansion of the Starr-Camargo Bridge near Rio Grande City, Texas, and the bill was then passed.

Pages S3844–45

Measures Indefinitely Postponed:

National Defense Authorization Act: By 86 yeas to 11 nays (Vote No. 212), Senate passed S. 2226, to authorize appropriations for fiscal year 2024 for

military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, by the order of the Senate of Thursday, July 27, 2023, 60 Senators having voted in the affirmative, and after taking action on the following amendments and motions proposed thereto:

Pages S3713–29

Adopted:

By 96 yeas to 3 nays (Vote No. 202), Barrasso Amendment No. 999 (to Amendment No. 935), to require the Secretary of Energy to establish a Nuclear Fuel Security Program, expand the American Assured Fuel Supply Program, establish an HALEU for Advanced Nuclear Reactor Demonstration Projects Program, and submit a report on a civil nuclear credit program, and to enhance programs to build workforce capacity to meet critical mission needs of the Department of Energy. (Pursuant to the order of Wednesday, July 26, 2023, the amendment having achieved 60 affirmative votes, was agreed to.)

Pages S3717–18

Cardin/Young Amendment No. 705 (to Amendment No. 935), to identify countries that are champions in the battle to combat global corruption. (A unanimous-consent agreement was reached providing that the requirement of a 60 affirmative vote threshold, be vitiated.)

Page S3719

Scott (SC) Amendment No. 944 (to Amendment No. 935), to require an assessment of the impact and feasibility of restricting gifts and grants to United States institutions of higher education from entities on the Non-SDN Chinese Military-Industrial Complex Companies List. (A unanimous-consent agreement was reached providing that the requirement of a 60 affirmative vote threshold, be vitiated.)

Page S3719

By 94 yeas to 4 nays (Vote No. 206), Gillibrand Amendment No. 1065 (to Amendment No. 935), to amend title XXXIII of the Public Health Service Act with respect to funding for the World Trade Center Health Program. (Pursuant to the order of Wednesday, July 26, 2023, the amendment having achieved 60 affirmative votes, was agreed to.)

Pages S3722–23

By 61 yeas to 37 nays (Vote No. 207), Hawley Amendment No. 1058 (to Amendment No. 935), to extend the period for filing claims under the Radiation Exposure Compensation Act and to provide for compensation under such Act for claims relating to Manhattan Project waste, and to improve compensation for workers involved in uranium mining. (Pursuant to the order of Wednesday, July 26, 2023, the amendment having achieved 60 affirmative votes, was agreed to.)

Pages S3723–24

By 96 yeas to 2 nays (Vote No. 208), Menendez Amendment No. 638 (to Amendment No. 935), to reauthorize the Firefighter Cancer Registry Act of 2018. (Pursuant to the order of Wednesday, July 26, 2023, the amendment having achieved 60 affirmative votes, was agreed to.) **Page S3724**

By 86 yeas to 11 nays (Vote No. 209), Schatz/Murkowski Amendment No. 1078 (to Amendment No. 935), to reauthorize the Native American Housing Assistance and Self-Determination Act of 1996. (A unanimous-consent agreement was reached providing that the requirement of a 60 affirmative vote threshold, be vitiated.) **Pages S3724–25**

Young Amendment No. 230 (to Amendment No. 935), to ensure that the Department of Defense has received an unqualified opinion on its financial statements by October 1, 2027. (A unanimous-consent agreement was reached providing that the requirement of a 60 affirmative vote threshold, be vitiated.) **Pages S3726–27**

Daines/Tester Amendment No. 1084 (to Amendment No. 935), to provide for the settlement of the water rights claims of the Fort Belknap Indian Community. (A unanimous-consent agreement was reached providing that the requirement of a 60 affirmative vote threshold, be vitiated.) **Page S3727**

By 94 yeas to 3 nays (Vote No. 211), Reed/Wicker Amendment No. 1087 (to Amendment No. 935), to provide for a manager's amendment. **Pages S3727–28**

Schumer (for Reed/Wicker) Amendment No. 935, in the nature of a substitute. **Page S3728**
Rejected:

By 11 yeas to 88 nays (Vote No. 203), Sanders Amendment No. 1030 (to Amendment No. 935), to reduce military spending. (Pursuant to the order of Wednesday, July 26, 2023, the amendment having failed to achieve 60 affirmative votes, was not agreed to.) **Pages S3718–19**

By 50 yeas to 49 nays (Vote No. 204), Marshall Amendment No. 874 (to Amendment No. 935), to prohibit the flying, draping, or other display of any flag other than the flag of the United States at public buildings. (Pursuant to the order of Wednesday, July 26, 2023, the amendment having failed to achieve 60 affirmative votes, was not agreed to.) **Pages S3720–21**

By 51 yeas to 47 nays (Vote No. 205), Kennedy Amendment No. 1034 (to Amendment No. 935), to prohibit allocations of Special Drawing Rights at the International Monetary Fund for perpetrators of genocide and state sponsors of terrorism without congressional authorization. (Pursuant to the order of Wednesday, July 26, 2023, the amendment having failed to achieve 60 affirmative votes, was not agreed to.) **Pages S3721–22**

By 55 yeas to 42 nays (Vote No. 210), Rubio Amendment No. 523 (to Amendment No. 935), to provide that sums in the Thrift Savings Fund may not be invested in securities that are listed on certain foreign exchanges. (A unanimous-consent agreement was reached providing that the amendment, having failed to achieve 60 affirmative votes, was not agreed to.) **Page S3726**

Withdrawn:

Schumer Amendment No. 936 (to Amendment No. 935), to add an effective date. **Page S3728**

A unanimous-consent agreement was reached providing that the motions to invoke cloture on Schumer (for Reed/Wicker) Amendment No. 935 (listed above) and on the bill, be withdrawn. **Page S3728**

Appointments:

Migratory Bird Conservation Commission: The Chair announced, on behalf of the Republican Leader, pursuant to Public Law 70–770, the appointment of the following individual to the Migratory Bird Conservation Commission: Senator Boozman. **Page S3839**

Commission on Security and Cooperation in Europe (Helsinki): The Chair, on behalf of the Vice President, pursuant to Public Law 94–304, as amended by Public Law 99–7, appointed the following Senators as members of the Commission on Security and Cooperation in Europe (Helsinki) during the 118th Congress: Senators Wicker, Boozman, Tillis, and Scott (SC). **Page S3839**

United States Holocaust Memorial Council: The Chair, on behalf of the President pro tempore, pursuant to Public Law 96–388, as amended by Public Law 97–84, and further amended by Public Law 106–292, reappointed the following Senators to the United States Holocaust Memorial Council for the 118th Congress: Senators Rubio and Scott (SC). **Page S3839**

Congressional-Executive Commission on the People's Republic of China: The Chair, on behalf of the President of the Senate, pursuant to Public Law 106–286, appointed the following Members to serve on the Congressional-Executive Commission on the People's Republic of China during the 118th Congress: Senators Rubio, Cotton, Daines, and Sullivan. **Page S3839**

Authorizing Leadership to Make Appointments—Agreement: A unanimous-consent agreement was reached providing that, notwithstanding the upcoming adjournment of the Senate, the President of the Senate, the President pro tempore and the Majority and Minority Leaders be authorized to make appointments to commissions, committees, boards, conferences, or interparliamentary conferences

authorized by law, by concurrent action of the two Houses, or by order of the Senate. **Page S3839**

Signing Authority—Agreement: A unanimous-consent agreement was reached providing that Senators Duckworth, Cardin, and Kaine be authorized to sign duly enrolled bills or joint resolutions from July 28, 2023, through September 4, 2023.

Page S3839

Committee Reporting—Agreement: A unanimous-consent agreement was reached providing that on Tuesday, August 22, 2023, from 12:00 noon until 2:00 p.m., committees be authorized to report legislative and executive matters.

Page S3839

Printing of National Defense Authorization Act—Agreement: A unanimous-consent agreement was reached providing that S. 2226, to authorize appropriations for fiscal year 2024 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, as passed by the Senate, be printed.

Page S3839

Pro Forma Sessions—Agreement: A unanimous-consent agreement was reached providing that the Senate adjourn, to then convene for pro forma sessions only, with no business being conducted on the following dates and times, and that following each pro forma session, the Senate adjourn until the next pro forma session: Friday, July 28, 2023, at 11:45 a.m.; Tuesday, August 1, 2023, at 12:15 p.m.; Friday, August 4, 2023, at 12 noon; Tuesday, August 8, 2023, at 10 a.m.; Friday, August 11, 2023, at 9 a.m.; Tuesday, August 15, 2023, at 12 noon; Friday, August 18, 2023, at 1 p.m.; Tuesday, August 22, 2023, at 2 p.m.; Friday, August 25, 2023, at 12 noon; Tuesday, August 29, 2023, at 11:45 a.m.; and Friday, September 1, 2023, at 11:45 a.m.; and that when the Senate adjourns on Friday, September 1, 2023, it next convene at 3 p.m., on Tuesday, September 5, 2023.

Page S3845

Jefferson Nomination—Cloture: Senate began consideration of the nomination of Philip Nathan Jefferson, of North Carolina, to be Vice Chairman of the Board of Governors of the Federal Reserve System.

Page S3738

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, and pursuant to the unanimous-consent agreement of Thursday, July 27, 2023, a vote on cloture will occur at 5:30 p.m. on Tuesday, September 5, 2023.

Page S3738

Prior to the consideration of this nomination, Senate took the following action:

Senate agreed to the motion to proceed to Executive Session to consider the nomination. **Page S3738**

A unanimous-consent agreement was reached providing that Senate resume consideration of the nomination at approximately 3 p.m., on Tuesday, September 5, 2023; and that the motions to invoke cloture filed during the session of Thursday, July 27, 2023, ripen at 5:30 p.m.

Page S3845

Wilcox Nomination—Cloture: Senate began consideration of the nomination of Gwynne A. Wilcox, of New York, to be a Member of the National Labor Relations Board.

Page S3738

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of the nomination of Philip Nathan Jefferson, of North Carolina, to be Vice Chairman of the Board of Governors of the Federal Reserve System.

Page S3738

Prior to the consideration of this nomination, Senate took the following action:

Senate agreed to the motion to proceed to Legislative Session.

Page S3738

Senate agreed to the motion to proceed to Executive Session to consider the nomination.

Page S3738

Cook Nomination—Cloture: Senate began consideration of the nomination of Lisa DeNell Cook, of Michigan, to be a Member of the Board of Governors of the Federal Reserve System.

Page S3738

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of the nomination of Gwynne A. Wilcox, of New York, to be a Member of the National Labor Relations Board.

Page S3738

Prior to the consideration of this nomination, Senate took the following action:

Senate agreed to the motion to proceed to Legislative Session.

Page S3738

Senate agreed to the motion to proceed to Executive Session to consider the nomination.

Page S3738

Kugler Nomination—Cloture: Senate began consideration of the nomination of Adriana Debora Kugler, of Maryland, to be a Member of the Board of Governors of the Federal Reserve System.

Page S3738

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of the nomination of Lisa DeNell Cook, of Michigan, to be a Member of the Board of Governors of the Federal Reserve System.

Page S3738

Prior to the consideration of this nomination, Senate took the following action:

Senate agreed to the motion to proceed to Legislative Session. **Page S3738**

Senate agreed to the motion to proceed to Executive Session to consider the nomination. **Page S3738**

Gomez Nomination—Cloture: Senate began consideration of the nomination of Anna M. Gomez, of Virginia, to be a Member of the Federal Communications Commission. **Pages S3738–39**

A motion was entered to close further debate on the nomination, and, in accordance with the provisions of rule XXII of the Standing Rules of the Senate, a vote on cloture will occur upon disposition of the nomination of Adriana Debora Kugler, of Maryland, to be a Member of the Board of Governors of the Federal Reserve System. **Page S3738**

Prior to the consideration of this nomination, Senate took the following action:

Senate agreed to the motion to proceed to Legislative Session. **Page S3738**

Senate agreed to the motion to proceed to Executive Session to consider the nomination. **Page S3738**

Nominations Confirmed: Senate confirmed the following nominations:

Eric W. Kneedler, of Pennsylvania, to be Ambassador to the Republic of Rwanda.

Hugo Yue-Ho Yon, of California, to be Ambassador to the Republic of Maldives.

Kathleen A. FitzGibbon, of New York, to be Ambassador to the Republic of Niger.

Matthew D. Murray, of Maryland, a Career Member of the Senior Foreign Service, Class of Counselor, for the rank of Ambassador during his tenure of service as United States Senior Official for the Asia-Pacific Economic Cooperation (APEC).

Ervin Jose Massinga, of Washington, to be Ambassador to the Federal Democratic Republic of Ethiopia.

Yael Lempert, of New York, to be Ambassador to the Hashemite Kingdom of Jordan.

Martina Anna Tkadlec Strong, of Texas, to be Ambassador to the United Arab Emirates.

Nicole D. Theriot, of Louisiana, to be Ambassador to the Co-operative Republic of Guyana.

Jennifer L. Johnson, of New York, a Career Member of the Senior Foreign Service, Class of Minister-Counselor, to be Ambassador to the Federated States of Micronesia.

Julie Turner, of Maryland, to be Special Envoy on North Korean Human Rights Issues, with the rank of Ambassador.

Gerald H. Acker, of Michigan, to be a Commissioner on the part of the United States on the Inter-

national Joint Commission, United States and Canada.

Robin Dunnigan, of California, to be Ambassador to Georgia.

William W. Popp, of Missouri, to be Ambassador to the Republic of Uganda.

Bryan David Hunt, of Virginia, to be Ambassador to the Republic of Sierra Leone.

Joel Ehrendreich, of New York, to be Ambassador to the Republic of Palau.

Nisha Desai Biswal, of Virginia, to be Deputy Chief Executive Officer of the United States International Development Finance Corporation.

Jack A. Markell, of Delaware, to be Ambassador to the Italian Republic, and to serve concurrently and without additional compensation as Ambassador to the Republic of San Marino.

Routine lists in the Air Force, Army, Foreign Service, Marine Corps, and Navy. **Pages S3845–46**

Nominations Received: Senate received the following nominations:

Jeffrey M. Bryan, of Minnesota, to be United States District Judge for the District of Minnesota.

Richard E.N. Federico, of Kansas, to be United States Circuit Judge for the Tenth Circuit.

Joshua Paul Kolar, of Indiana, to be United States Circuit Judge for the Seventh Circuit.

Eumi K. Lee, of California, to be United States District Judge for the Northern District of California.

Routine lists in the Air Force, Army, and Navy. **Page S3845**

Messages from the House: **Page S3750**

Measures Referred: **Page S3750**

Executive Communications: **Pages S3750–52**

Petitions and Memorials: **Page S3752**

Additional Cosponsors: **Pages S3758–61**

Statements on Introduced Bills/Resolutions: **Pages S3761–73**

Additional Statements: **Pages S3746–50**

Amendments Submitted: **Pages S3773–S3838**

Authorities for Committees to Meet: **Pages S3838–39**

Privileges of the Floor: **Page S3839**

Text of S. 2226 as Previously Passed:

Record Votes: Eleven record votes were taken today. (Total—212) **Pages S3718–20, S3722–29**

Adjournment: Senate convened at 10 a.m. and adjourned at 11:05 p.m., until 11:45 a.m. on Friday,

July 28, 2023. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S3845.)

Committee Meetings

(Committees not listed did not meet)

BUSINESS MEETING

Committee on Appropriations: Committee ordered favorably reported an original bill (S. 2587) entitled, "Defense Appropriations Act", an original bill (S. 2605) entitled "Interior, Environment, and Related Agencies Appropriations Act", an original bill (S. 2624) entitled, "Labor, Health and Human Services, Education, and Related Agencies Appropriations Act", and an original bill (S. 2625) entitled, "Homeland Security Appropriations Act".

BUSINESS MEETING

Committee on Commerce, Science, and Transportation: Committee ordered favorably reported the following bills:

S. 447, to establish a demonstration program for the active remediation of orbital debris and to require the development of uniform orbital debris standard practices in order to support a safe and sustainable orbital environment, with an amendment in the nature of a substitute;

S. 484, to require the Secretary of Commerce to provide training and guidance relating to human rights abuses, including such abuses perpetrated against the Uyghur population by the Government of the People's Republic of China;

S. 1153, to require the Secretary of Commerce to establish the National Manufacturing Advisory Council within the Department of Commerce, with an amendment in the nature of a substitute;

S. 1303, to require sellers of event tickets to disclose comprehensive information to consumers about ticket prices and related fees, with an amendment in the nature of a substitute;

S. 1409, to protect the safety of children on the internet, with an amendment in the nature of a substitute;

S. 1418, to amend the Children's Online Privacy Protection Act of 1998 to strengthen protections relating to the online collection, use, and disclosure of

personal information of children and teens, with an amendment in the nature of a substitute;

S. 1421, to require origin and location disclosure for new products of foreign origin offered for sale on the internet, with an amendment in the nature of a substitute;

S. 1648, to facilitate access to the electromagnetic spectrum for commercial space launches and commercial space reentries, with amendments;

S. 1669, to require the Secretary of Transportation to issue a rule requiring access to AM broadcast stations in motor vehicles, with an amendment in the nature of a substitute;

S. 2116, to require the Secretary of Commerce to produce a report that provides recommendations to improve the effectiveness, efficiency, and impact of Department of Commerce programs related to supply chain resilience and manufacturing and industrial innovation, with an amendment in the nature of a substitute; and

S. 2201, to increase knowledge and awareness of best practices to reduce cybersecurity risks in the United States, with amendments.

SINGLE-USE WASTE

Committee on Environment and Public Works: Subcommittee on Chemical Safety, Waste Management, Environmental Justice, and Regulatory Oversight, concluded hearings to examine solutions for single-use waste, focusing on expanding refill and reuse infrastructure, after receiving testimony from Dacie Meng, Ellen MacArthur Foundation, Washington, D.C.; Clemence Schmid, Loop Global, Geneva, Switzerland; and Tim Debus, Reusable Packaging Association, Murphy, North Carolina.

HAITI

Committee on Foreign Relations: Subcommittee on Western Hemisphere, Transnational Crime, Civilian Security, Democracy, Human Rights, and Global Women's Issues concluded a hearing to examine Haiti, focusing on next steps on the international response, after receiving testimony from Brian A. Nichols, Assistant Secretary of State for Western Hemisphere Affairs; and Marcela Escobari, Assistant Administrator for Latin America and the Caribbean, United States Agency for International Development.